

Bihar State Employees (House Rent Allowance) Rules, 1980

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State of Jharkhand - Act

Bihar State Employees (House Rent Allowance) Rules, 1980

JHARKHAND

India

Bihar State Employees (House Rent Allowance) Rules, 1980

Rule BIHAR-STATE-EMPLOYEES-HOUSE-RENT-ALLOWANCE-RULES-1980 of 1980

Published on 13 June 1980

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Bihar State Employees (House Rent Allowance) Rules, 1980

Published vide Notification No. 3/AI-3-5/83 F, dated 13th June 1980

No. 3/AI-3-5/83 F, the 13th June 1980. - In exercise of the powers conferred by Article 309 of the Constitution of India, the Governor of Bihar is pleased to make the following rules regulating the grant of House Rent Allowance to the employees of the State, namely. -

1.

(i)

These rules may be called the Bihar State Employees (House Rent Allowance) Rules, 1980.

(ii)

These rules shall come into force with effect from 1st April 1980.

2.

Definition.

- For purpose of these rules-

(a)

"Pay" means as defined in Rule 34 of the Bihar Service Code.

(b)

"Rent" means the charges paid by a Government Servant as consideration for unfurnished accommodation occupied by him if he is a tenant, and the gross rental value of the house as assessed for municipal purpose or otherwise without deduction of the rebate of 10 per cent on account of repairs if he is an owner, and shall, in both cases, include municipal and other taxes, except service taxes levied separately and described as such that are legally payable by the occupier.

(c)

"Family" means a Government Servant's wife/husband, children and other persons residing with and wholly dependent upon him/her. A husband/wife/child/parent having an independent source of income is not treated as a member belonging to the family of the Government Servant except when such income including pension (inclusive of temporary increase in pension and pension equivalent of death cum retirement benefits) does not exceed Rs. 250 per month.

3.

The following House Rent Allowance shall be admissible to the State Government employees:-

(A)

Rates of Allowance

Class of city/tow

'A' Class

15% of pay subject to a maximum of Rs. 400 per mensem.

'B'-1 Class

'B'-2 Class

7 ½% of pay subject to a maximum of Rs. 200 per mensem.

'C' Class

Note. - House Rent Allowance is admissible, without reference to the quantum of rent paid to the employees drawing pay up to [Rs. 1069]

[Substituted by Memo No. 4344 (F.Z.) dated 30.4.1983.]

, In the case of employees drawing pay exceeding [Rs. 1069]

[Substituted by Memo No. 4344 (F.Z.) dated 30.4.1983.]

production and verification of rent receipts shall be compulsory.

(B)

Verification of Rent Receipts

(i)

House Rent Allowance is admissible, without reference to the quantum of rent paid to the employees drawing pay up to [Rs. 1069]

[Substituted by Memo No. 4344 (F.Z.) dated 30.4.1983.]

, However employees drawing pay exceeding [Rs. 1069]

[Substituted by Memo No. 4344 (F.Z.) dated 30.4.1983.]

shall, unless they produce rent receipts for verification, also draw house rent allowance at the same rate to which an employee drawing pay of [Rs. 1069]

[Substituted by Memo No. 4344 (F.Z.) dated 30.4.1983.]

and serving at the same station is entitled to House Rent Allowance at a higher rate can be drawn by them only if they are in a position to produce rent receipts.

(ii)

According to Rule 9(a) a Government Servant is required to furnish a certificate in the form prescribed in Annexures II, III-A, III-B or III-C alongwith his first claim of house rent allowance and also in January and July each year. The house rent receipts are also required to be furnished alongwith these certificates. If there is any change in any of the provisions of the certificate last given, resulting in increase or decrease of the allowance payable, a fresh certificate together with a house rent receipt is required to be furnished as soon as the change occurs. It is clarified that the verification is required to be made only with reference to the rent receipts produced. In case where the administrative authorities have reason

to doubt the particulars given in the rent receipts, separate enquiries should be made.

(iii)

The verification of rent receipts in the case of non-gazetted officers will be the responsibility of the Head of the Office and in the case of Gazetted Officers, it will be for the Head of the Department to ensure that the verification is done in the required manner. In the case of a Head of Department the necessary verification will be done by the Administrative Department concerned. Gazetted Officers will furnish a certificate to the Accountant General indicating that the rent receipt, in original, has been submitted separately to the Head of the Department for verification, alongwith requisite certificates as required under Rule 9(a) to enable the Accountant-General to authorise drawal of house rent allowance to the officer concerned. Simultaneously, they will also furnish a copy of the said certificate alongwith the rent receipts in the original to the administrative authority concerned with the verification of their rent receipts.

Area Where Admissible

4.

(a)

(i)

The limits of the locality within which these rules apply shall be those of the named municipality, or corporation and shall include such of the suburban municipalities, notified areas or cantonments as are contiguous to the named municipality or corporation or other areas as the State Government may, from time to time, notify.

(ii)

These rules will automatically apply/cease to apply to areas which may be included within/excluded from the limits of the named municipality or corporation by the State Government concerned, from the date of such inclusion/exclusion.

(b)

(i)

A Government Servant whose place of duty falls within the qualifying limits of a city shall be eligible for the house rent allowance, irrespective of whether his place of residence is within such limits or outside.

Note 1. - Absence from place of duty during holidays, except those affixed to leave, will not affect the eligibility for the house rent allowance.

Note 2. - For the period of tour, a Government Servant's entitlement to this allowance shall be regulated with reference to his headquarters.

(ii)

Government servants whose place of duty is in the proximity of a qualified city, and who, if necessity have to reside within the city, may be granted the house rent allowance admissible in that city. The Administrative Department, in respect of staff serving under them, are authorised to sanction the allowance under this clause provided they are satisfied that-

(1)

the distance between the place of duty and the periphery of the municipal limits of the qualified city does not exceed 8 kilometres; and

(2)

the staff concerned have to reside within the qualified city out of necessity, i.e., for want of accommodation nearer to their place of duty.

Note 1. - Rule 4(b)(ii) is applicable only at place which are within 8 kilometres of municipal limits of classified cities but not included within the Urban Agglomeration of any city. Government Servants within the area of the Urban Agglomeration of classified city as mentioned in Annexure IV will be eligible for house rent allowance at the rate admissible.

Note 2. - Rule 4(b)(ii) will not apply to establishment entitled to house rent allowance, project allowance, remote locality allowance, hill allowance or such other allowances under any other provision of this rule or other general or special orders.

Those occupying or refusing Government Accommodation not eligible for House Rent Allowance

5.

The grant of house rent allowance shall be subject to the following conditions:

(a)

To those Government servants who are eligible for Government accommodation, the allowance will be admissible only if

they have applied for such accommodation in accordance with the prescribed procedure, if, any, but have not been provided with it.

(b)

(i)

The allowance shall not be admissible to those who occupy accommodation provided by Government or those whom accommodation has been offered by Government but who have refused it. In the latter case, the allowance will not be admissible for the period for which a Government servant is debarred from further allotment of Government accommodation under the allotment rules applicable to him.

(ii)

The house rent allowance drawn by a Government servant, who accepts allotment of Government accommodation, shall be stopped from the date of occupation, or from the eight day after the date of allotment of Government accommodation, whichever is earlier. In case of refusal of allotment of Government accommodation, house rent allowance shall cease to be admissible from the date of allotment of Government accommodation. In case of surrender of Government accommodation, the house rent allowance, if otherwise admissible, will be payable from the date of such surrender.

Note. - In the case of surrender of Government accommodation, the house rent allowance, if otherwise admissible will be payable from the date, no accommodation certificate is issued by the accommodation controlling authority.

(iii)

A Government servant debarred from allotment of Government accommodation due to unauthorised sub-letting or for other breaches of rules, but excluding those covered by clause (b) (i) will be eligible for house rent allowance during the period of such departure, subject to the fulfilment of the usual conditions except that the conditions that he must have applied for but not provided with Government accommodation will not be enforced in his case.

(iv)

Refusal by a Government servant of a quarter of a different class from that for which he is eligible shall not constitute refusal for the purpose of these rules unless he has the option to apply for accommodation of a class next below one to which he is entitled by virtue of his emoluments and he refuses such accommodation when allotted on the basis of his application.

(v)

Refusal by a Government servant of accommodation (other than single room hostel accommodation or hostel accommodation where messing and payment of service charges are compulsory) allotted out of turn on his own application shall constitute refusal for the purpose of these rules, even when the accommodation provided is of a lower class than that for which he is eligible.

(vi)

Female Government servants residing in the Working Girl's Hostel, or in Government run hostel are not entitled to house rent allowance. Government servant living in hostels run by autonomous and semi-Government Organisation, which are not run on commercial lines (i.e. State Government employees allotted hostel accommodation are not charged market rent but a subsidised rent), would not be entitled to house rent allowance.

(vii)

A Government servant who, on transfer, has been permitted to retain Government accommodation at the old station on payment of normal rent or penal rent, will be eligible for house rent allowance at the new station.

(viii)

A Government servant who was not in occupation of Government accommodation at his old station and who, on transfer, leaves his family behind at the old station because he has not rented a house or has not been allotted Government accommodation at the new station; will be eligible for house rent allowance for a period of six months from the date of his assumption of charge at the new station, or till he rents a house or is allotted Government accommodation at the new station, whichever is earliest. The house-rent allowance in such cases shall be regulated as follows without prejudice to the entitlement to house rent allowance with reference to the place of duty in terms of rule 3.

(1)

During the first two months of the date of assumption of charge at the new station.

At the same rate at which it was drawn at the old station.

(2)

For the next 4 months.

At the rate at which it was being drawn by him at the old station or the maximum amount that would have been admissible to him at the new station, had he taken a residence on rent there, whichever is less.

In either case the grant of House Rent Allowance under these provisions shall not be admissible beyond the date on which he rents a house or is allotted Government accommodation at the new station.

(ix)

During the period of transfer not exceeding 90 days, a Government servant shall draw House Rent Allowance at the same rate at which he was entitled to it at the time of transfer. The quantum of the allowance shall, however, be determined with reference to the pay which a Government servant would have drawn but for the transfer. For periods of transfer exceeding 90 days the grant of this allowance shall be regulated with reference to the new head quarters. If a transfer, initially made for a period not exceeding 90 days is later extended, the House Rent Allowance shall be paid up to the date of issue of orders extending the transfer or for a period of 90 days whichever is less.

Note. - For temporary transfer; initially made for a period not exceeding 90 days, but later extended beyond this period, the benefit of the provisions contained in rule 5(b)(viii) shall be allowed to the Government servant from the date of issue of the order converting the transfer into a permanent one or at the end of 90 days whichever is earlier.

Conditions for drawal of House Rent Allowance

6.

(a)

Subject to the provisions of clause (b), no Government servant will draw house rent allowance in excess of the amount by which the rent actually paid by him exceeds 10 per cent of his pay.

(b)

(i)

If the Government servant sub-lets or shares a part of his accommodation with one or more adults, not belonging to his family, whether Government servant(s) or not a reduction of 40 per cent or the actual rent charged by him from the subtenant/co-sharer, whichever is higher, shall be made from the rent actually paid by him to the landlord for the purpose of computing the amount of house rent allowance admissible to him. A reduction of 40 per cent shall also be made where a part of the accommodation hired by the Government servant for which he claims house rent allowance is used for other than bona fide residential purposes.

(ii)

If the sub-tenant or co-sharer is also a Government servant, house rent allowance will be admissible to him also, the amount of the allowances being calculated on the rent actually paid by him to the main tenant.

Note 1. - Keeping of servant in the house shall not be deemed to be subletting or sharing a part of the accommodation.

Note 2. - As an exception of the above rule in cases where a Government servant who shares his/her accommodation with his wife/her husband/parents/son/daughter/unmarried sister who is also an employee of Central Government/State Government/Autonomous Public Undertaking/Semi-Government Organisation such as a Municipality, Port Trust, Nationalised Banks, Life Insurance Corporation of India, etc., he/she (Government servant) may be allowed the option to draw house rent allowance without a reduction of 40 per cent from the rent actually paid by him/ her, subject to the condition that the other spouse/parent/son/daughter does not draw any house rent allowance.

Note 3. - The reduction of 40 per cent referred in clause (b) (i) will not be made where spouse/parent/son/daughter/unmarried sister is/are employed in the private sector or are self-employed or pensioner or/and is/are having income exceeding Rs. 250 per month from any property/investment.

(c)

A Government servant shall not be entitled to house rent allowance, if-

(i)

he shares Government accommodation allotted rent free to another Government servant, or

(ii)

he/she resides in accommodation allotted to his/her parents/son/daughter by the Central Government, State Government, an autonomous public undertaking or Semi-Government Organisation such as a Municipality, Port Trust, Nationalised Banks, Life Insurance Corporation of India, etc.

(iii)

his wife/her husband has been allotted accommodation at the same station by the Central Government, State Government, an Autonomous Public Undertaking or Semi-Government Organisation, such as Municipality, Port Trust, etc., whether he/she resides in that accommodation or he/she resides separately in accommodation rented by him/her.

(d)

The half-yearly verification of rent receipts as a matter of routine shall be dispensed with. The Head of Office in the case of a non-Gazetted Government servant, the Head of the Department in the case of a Gazetted Government servant or the Administrative Department if the Government servant himself is Head of the Department shall however, have the right to test check the rent receipt and also consider whether the rent claimed is reasonable.

(e)

As an exception to clauses (a) and (b) Government servants drawing pay upto Rs. 750 other than a Government servant who is living in a house owned by him and drawing pay up to Rs. 750 shall be eligible for house rent allowance at the rates specified in rule 3 even if they share Government accommodation allotted to other Government servants [excluding those mentioned in (c) above] or private accommodation of other Government servant [including those mentioned in (c) (iii)] subject only to the condition that they pay rent or contribute towards rent or house or property tax but without reference to the amount actually paid or contributed. As an exception to rule 8, the grant of house rent allowance to a Government servant living in his/her own house or to a Government servant living in a house owned by a Hindu Undivided Family in which he is a co-parcener, and whose pay does not exceed Rs. 750 will be without reference to the amount of the gross rental value as assessed by the Municipal Authorities. Thus, in the case of such Government servants it will not be necessary to insist on the production of the assessment of the rental value by the Municipal Authorities for purpose of claiming house rent allowance.

Note. - In cases where husband/wife/parents, children, two or more of them being Central Government servants or employee of State Governments, Autonomous Public Undertaking or Semi-Government Organisation like Municipality, Port Trust, National Banks, Life Insurance Corporation of India etc. share accommodation allotted to another Government servant, house rent allowance will be admissible to only one of them, at their choice.

The term "accommodation" includes the accommodation allotted to the employee of State Government, Autonomous Public Undertakings, Semi-Government Organisation, such as Municipality, Port Trust, etc.

Regulation of Allowance in Different Circumstances

7.

The drawal of house rent allowance in the following case shall be regulated as stated below:-

(a)

Leave. - (i) A Government servant will be entitled to draw house rent allowance during leave at the same rate at which he was drawing this allowance before he proceeds on leave. For this purpose leave means total leave of all kinds not exceeding 4 months or, in the case of Government servants governed by the Revised Leave Rules, 120 days and the first 4 months/120 days of the leave if the actual duration of the leave exceeds that period; but does not include terminal leave, whether running concurrently with the notice period or not. When vacation or holidays are combined with leave, the entire period of vacation or holiday and leave should be taken as one spell of leave.

House Rent Allowance will be admissible during L.P.R. (leave preparatory to retirement) or refused leave, i.e. where L.P.R. was refused in public interest and the person concerned enjoys it after demitting office, subject to submission of certificate that the employee concerned and/or his family continue to reside at the same place/ same station. During the period of refused leave, the aforesaid allowance shall not, however, be paid as a part of one time settlement but shall be paid each month in arrears on the expiry of the refused leave for that month.

Note 1. - In the case of Government servants who are originally granted leave on medical certificate exceeding four months and have ultimately to retire from Government service on grounds of invalidity, the entire leave thus becoming leave preparatory to retirement, recovery of house rent allowance already drawn need not be effected. State Government servants who are originally granted leave on medical ground or otherwise but do not join duty after expiry of such leave owing to death/ invalidation during such leave may also be regulated in the same manner.

Note 2. - The drawal of this allowance during periods of vacation whether combined with leave or not shall be regulated in the same way as during leave.

Note 3. - In case where a Government servant who is sanctioned leave were on medical grounds or otherwise, does join duty after availing himself of such leave, and resigns, he shall not be eligible for house rent allowance for the entire

period of such leave. The Administrative authority concerned shall ensure that the entire amount drawn on this account is recovered before resignation, etc, is accepted.

Note 4. - Drawal of this allowance during the period of leave in excess of first 4 months/120 days availed of on grounds other than medical grounds mentioned in clause (ii) of this rule shall be subject to furnishing of the certificates prescribed in rule 9(a).

(ii)

The limit of 4 months/120 days shall be extended to 8 months for the purpose of the grant of this allowance in the case of Government servants suffering from T.B, cancer or other ailments during the period of their leave taken on medical certificates. It is immaterial whether the leave is on medical certificate from the very commencement or is in continuation of other leave as defined in clause (i) of this rule. In the case of employees suffering from T.B., cancer, or other ailments, who remain on leave for a period exceeding 8 months, the grant of House Rent Allowance for the period of leave beyond 8 months, may be decided by the respective controlling authorities without consulting the Finance Department irrespective of the period of leave involved so long as the Medical Certificate is available.

(b)

Joining Time. - During joining time, a Government servant shall continue to draw house rent allowance at the same rate at which he was drawing this allowance at the station from where he was transferred. Where, however, joining time is affixed to leave, joining time shall be added to the period of 4 months/120 days referred to in clause (a) unless in any case it is otherwise expressly provided:

Leave taken during the course of training or immediately after the completion of training abroad to cover stay over/stop overs resulting in the absence of the trainees abroad beyond a period of six months cannot be treated as part of the period of training and as such the Government servant concerned will not be entitled to any house rent allowance during the period of leave taken on training abroad irrespective of whether the leave falls within the first six months of the training or immediately after the completion of training abroad.

(c)

Deputation abroad. - The officers going abroad on deputation shall be eligible to draw house rent allowance at the rates admissible to them from time to time at station from where they proceed abroad on deputation in the following manner:-

(i)

Deputation not exceeding one year. - House rent allowance will be admissible for the entire period of deputation.

(ii)

Deputation exceeding one year. - An employee proceeding on deputation abroad for a period exceeding one year will be eligible for House Rent Allowance till such time as his family remains at the last place of his duty in India. In the event of an employee applying for family passage to the place of deputation abroad or for Transfer Travelling Allowance in respect of his family's journey from the headquarters in India to Home town or any other station, he will not be required to refund the amount of House Rent Allowance up to the date up to which the family actually resides at the last Headquarters of the employee in India.

(iii)

Deputation initially not exceeding one year but subsequently extended beyond one year. - House Rent Allowance will be admissible up to the date of orders extending the period of deputation beyond one year. Thereafter, the allowance shall be admissible as per sub-clause (ii) of clause (c) of this rule.

(iv)

The drawal of allowance under this sub-clause will be subject to the production of certificates prescribed in rule 9(d).

(d)

Training abroad. - A Government servant who is deputed for training abroad under the various training schemes sponsored by the Government of India or operated through non-official channels shall be entitled to draw house rent allowance during the entire period of such training at the rates admissible to him from time to time at the station from where he was deputed abroad for training subject to the production of certificates prescribed in rule 8(d).

(e)

Training in India. - A Government servant, whether permanent or temporary, who is sent on training in India, and whose period of training is treated as duty under Rule 14(e)(1) of the Bihar Service Code, shall be entitled to draw during the entire period of such training house rent allowance at the rates admissible to him, from time to time, at either the place of training or the place of duty from where he proceeded on training, whichever are more favourable to him. For claiming

the allowance admissible at the place of duty from where a Government servant proceeds to another station for training, he will be required to furnish the certificate(s) prescribed in rule 9(d).

Note. - A Government servant, who is allowed travelling allowance as on tour and draws daily allowance at the place of training will draw house rent allowance only at the rates admissible to him at his headquarters from where he proceeded on training.

Clarification

A point may be raised whether a departmental trainee who is drawing house rent allowance at the station from which he proceeds for training can be allowed to draw during the period of training, the house rent allowance at the rates admissible at the old station when the training is imparted at a residential training centre where the trainee is provided with any accommodation for keeping his family and the trainee continues to incur expenditure on house rent at his old headquarters.

It is clarified that department trainees in the circumstances explained above may be allowed to draw house rent allowance during the period of training at the rates admissible at the old station from which they proceed on training subject to the fulfilment of all other terms and conditions governing the grant of house rent allowance.

(f)

Suspension. - The drawal of house rent allowance to a Government servant under suspension shall be regulated with reference to proviso to Rule 96 (i) (b) and 97 of Bihar Service Code subject to his furnishing either or both of certificates prescribed in rule 9 (d) for drawal of allowance for periods beyond 4 months/120 days from the date of suspension.

Note. - If the headquarters of a Government servant under suspension are changed in the public interest by orders of a competent authority, he shall be entitled to the allowance as admissible at the new station provided he furnishes the requisite certificate with reference to such station.

(g)

Re-employed Pensioners. - The drawal of house rent allowance in case of re-employed pensioners shall be regulated as indicated below:-

(a)

In the case of officers whose pay plus pension exceeds the sanctioned maximum pay of the post the allowance will be calculated on that maximum;

(b)

In the case of officers whose pay on re-employment in a post is fixed without taking into account the entire pension or a part thereof, the amount of pension so ignored shall also not be taken into account for the purpose of the grant of house rent allowance.

(c)

In other cases, the allowance will be calculated on pay plus pension.

Note. - For the purpose of clause (g) -

(a)

'Pension' means gross pension including temporary increase in pension and pension equivalent of death-cum-retirement gratuity and -other retirement benefits, if any.

(b)

The amount of pension will be the amount originally sanctioned (i.e., before commutation if any) less the amount of pension, if any, held in abeyance as a condition of re-employment.

(h)

Women Government servants not paying themselves. - In the case of married Government servant residing with her husband, and in the case of an unmarried Government servant residing with her father or other members of the family, who are not Government servants the rent paid by her husband or, as the case may be, by her father or other members of the family, shall be deemed to be the rent paid by her. Such Government servants will be eligible for house rent allowance if otherwise admissible under these rules.

Government Servants Owning Houses

8.

(i)

A Government servant living in a house owned by him, his wife, children, father or mother shall also be eligible for house rent allowance under these rules. In such cases, the gross rental value of the house or, if he is not in occupation of the

entire house, or the portion of the house actually occupied by him (as ascertained from its assessed value for municipal purposes or otherwise), without deduction of rebate of 10 per cent on account of repairs and including municipal and other taxes that are legally payable by the owner other than "Service taxes" levied separately and described as such, shall be taken as the rent paid by him for private accommodation for the purpose of these rules.

When separate amount of assessed value is not available in respect of a portion of a house, it will be calculated proportionately with reference to the plinth area actually in the occupation of a Government servant.

If a house is situated within a municipality/local board/notified area/cantonment boards, grant of house rent allowance in above case should invariably be regulated on the basis of gross rental value as assessed by these authorities. Only when assessment by such an authority is not possible assessment made by other local authorities may be accepted as the basis for the grant of House Rent Allowance.

Clarification

A question may be raised regarding the manner in which the claim of House Rent Allowance of State Government employees who have taken House/Flats on hire purchase basis from private House Buildings Societies, Bihar State Housing Board should be regulated. It is clarified that the rental value of the premises as determined by the Municipal authorities, etc. as in the case of house fully owned by Government servants for determining the house rent allowance payable to the Government concerned shall form the basis for the grant of House Rent Allowance in such cases.

(ii)

In the case of a Government servant living in a house owned by a Hindu undivided family in which he is a co-parcener, house rent allowance will be regulated with reference to the gross rental value, as in clause (i) of the portion of the house actually in his occupation and not on the basis of the rent which he claims to pay to the Manager of the Hindu undivided family.

Note. - The grant of house rent allowance to Government servants referred to in clauses (i) and (ii) will be subject to the fulfilment of the same conditions as apply to a Government servant residing in private rented accommodation.

(iii)

In the case of a Government servant who owns a house at a place of duty but resides in a rented house instead, house rent allowance shall be paid in respect of the rented house, if otherwise admissible.

Certificate

9.

(a)

Every Government servant shall furnish alongwith the first claim for house rent allowance a certificate in the form given in Annexures II, III-A, III-B, or III-C whichever is applicable to him and whenever there is a change in any of the provisions of the certificate last given in respect of the same or different accommodation and/or resulting increase or decrease of the allowance payable.

(b)

While non-gazetted officers shall furnish the requisites to their Head of Office, gazetted officers shall furnish the same to the Accountant General alongwith their first claim for house rent allowance and also attach them with their pay bills for January and July each year.

(c)

The following certificate shall be endorsed in January and July each year by the drawing and disbursing officer on the bill in which house rent allowance of non-gazetted officers are drawn by them:

(i)

"Certified that in the case of all Government servants for whom house rent allowance is drawn in this bill, the eligibility of the allowance has been verified with reference to rule 4."

(ii)

"Certified that the Government servants for whom house rent allowance is drawn in this bill (have applied for but) have not been provided with any Government accommodation."

(iii)

"Certified that certificates prescribed by Government have been obtained from Government servants for whom house rent allowance has been drawn in this bill and I am satisfied that claims are in accordance with the rules in force."

Note. - The words shown in the brackets in clause (ii) may be omitted if the Government servants for whom the allowance is drawn are not eligible for Government accommodation or if their cases are covered by the Notes under rule

5.

(d)

The certificates required under clauses (c) (iv), (d), (e) and (f) of rule 7 will be as follows:-

The Government servant concerned continued for the period for which house rent allowance is claimed, to retain the house at the same station (whether within its qualifying limits or in an adjoining area) from where he was placed under suspension proceeded on leave/deputation abroad/training paid rent for it and did not sub-let whole of it.

Note. - The words "adjoining area" used in the above certificates refer to an area from which a Government servant normally attends to his duties.

Note. - If part of an accommodation is sub-let by a Government servant during the events referred to in the clauses quoted above his house rent allowance will be regulated in the manner prescribed in rule (6)(b)(i).

10.

These rules will apply to-

(a)

Government servant appointed on ad hoc or personal rates of pay unless the orders sanctioning their appointment specifically provide for the drawal of house rent allowance in addition to pay;

(b)

staff paid out of contingencies.

11.

These rules will not also apply to Government servants who are entitled to house rent allowance in lieu of rent free accommodation as a condition of service.

Annexure I

List of 'A', 'B-1', B-2' and 'C' Class cities where House Rent Allowance will be admissible according to rule 3

Class of Cities

Name of State

'A'

'B-1'

'B-2'

'C'

Bihar

...

...

Patna (U.A.)[Jamshedpur (U.A.), Ranchi (U.A.)]

[Added vide Memo No. 9617 dated 10.10.1983 with effect from 1.8.1983.]

Arrah, Bettiah, Bhagalpur, Bihar-sharif, Bokaro

Steel City, (U.A.), Chapra, Darbhanga, Dehri, Dalmianagar,

Dhanbad (U.A.), Dinapur (U.A.), Gaya, Hazaribagh, Katihar

(U.A.), Monghyr, Jamalpur, Muzaffarpur, Purnea (U.A.), Sasaram,[Barauni, Begusarai (U.A.), Daltonganj, Deoghar (U.A.), Giridih,

Hajipur, Kishanganj, Mokamah, Motihari (U.A.), Patratu (U.A.),

Saharsa, Siwan.]

[Added vide Memo No. 9617 dated 10.10.1983 with effect from 1.8.1983.]

*"U.A." means "urban Agglomerations."

Annexure II

(Reference Rule 9)

Certificate to be furnished by a State Government servant drawing pay upto [Rs. 1069]

[Substituted by Memo No. 4344 (F2) dated 30.4.1983.]

per month as well as by a State Government servant drawing pay above [Rs. 1069]

[Substituted by Memo No. 4344 (F2) dated 30.4.1983.]

per month but claiming House Rent Allowance with reference to pay [Rs. 1069]

[Substituted by Memo No. 4344 (F2) dated 30.4.1983.]

per month.

(1)

I certify that I *(have applied for the Government accommodation in accordance with the prescribed procedure but have not been provided with Government accommodation/have refused the allotment of Government accommodation during the period in respect of which the allowance is claimed.

(2)

I certify that I am residing in a house hired/owned by me /my wife/husband/ son/daughter/father/mother/a Hindu Undivided Family in which I am a co-parcener.

(3) I certify that I am| incurring some expenditure on rent.contributing towards rent.

Or

I certify that the rental value of the house owned by me/owned by a Hindu Undivided Family in which I am a co-parcener and in which I am residing is ascertainable in the manner specified in rule 8.

* I certify that I am paying/ contributing towards house or property tax.

(4)

I certify that I am not sharing accommodation allotted to my parent (child by the State/Central Government, an autonomous public undertaking or semi-Government organisation such as municipality, port trust, etc., allotted rent free to another Government servant.

(5)

I certify that my husband/wife/children/parents who is/are sharing accommodation with me allotted to another employee of the Central/State Government/ autonomous public undertaking or semi-Government organisations like municipality, port trust, etc., is/are not in receipt of house rent allowance from the Central/State Government, autonomous public undertaking or semi-Government organisations like municipality, port trust etc.

(6)

I also certify that my wife/husband has not been allotted accommodation at the same station by the Central/State Government, an autonomous public undertakings or semi-Government, organisations such as municipality, port trust, etc.

Signature.....

Designation.....

Date.....

* The words shown in brackets may be omitted if the Government servant is not eligible for Government accommodation or if his case is covered by Notes under rule 5(b) or where it is not obligatory for him to apply for Government accommodation for eligibility for House Rent Allowance.

** To be furnished by a Government servant living in his own house or in a house owned by a Hindu Undivided Family in which he is a co-percener.

*** To be furnished by Government servant being the wife, husband, son, daughter, father or mother of the Government servant owning the house who is sharing accommodation with the latter.

Annexure III-A

(Reference rule 9)

Certificate to be furnished by a Government servant drawing pay above [Rs. 1069]

[Substituted by Memo No. 4344 (F2) dated 30.4.1983.]

per month for the grant of House Rent Allowance in terms of Rule 6.

(1)

I certify that [I am residing]

[Delete which sub-clause is not applicable.]

in a rented house (address of premises)/as a sub-tenant in a house.. (address of premises) rented by another Government servant, viz. (name, designation and office) from the to the.....and I am paying monthly rent of Rs.....This includes/does not include. -

(a)

[occupiers share of municipal and other taxes not legally payable by the tenant Rs.

[Delete which sub-clause is not applicable.]

(b)

service taxes levied separately and described as such Rs for the period.....]

(2)

[I certify that I am myself not a sub-tenant of another Government servant.

(3)

I certify that accommodation in respect of which the allowance is claimed is not sub-let or occupied normally by any person other than (a) members of my family as defined in rule 2(c) or (b) my spouse/son(s) daughter(s) /parent(s) who is/ are not drawing any house rent allowance from Central Government, State Government, Autonomous Public Undertakings/semi-Government Organisation such as Municipality, Port Trust/Autonomous Bodies having been brought into existence by an Act of Parliament such as Nationalised Banks, Life Insurance Corporation of India, etc.]

[Delete if not applicable.]

(4)

I certify that I [(have applied for Government accommodation in accordance with the prescribed procedure but I have not been provided with)]

[The words shown in bracket may be omitted if the Government servant is not eligible for Government accommodation or if his case is covered by Note under 5 (b) or where it is not obligatory for him to apply for Government accommodation for eligibility for House Rent Allowance.]

(have refused the allotment of) Government accommodation during the period in respect of which the allowance is claimed.

(5)

I also certify that my wife/husband has not been allotted family accommodation at the same station by the Central Government, a State Government, autonomous public undertakings or a semi-Government organisation such as Municipality, Port Trust, etc.

(6)

I also certify that [the accommodation for which House Rent Allowance has been a part of the accommodation for which House Rent Allowance

claimed by me is not being used for other than bona fide residential| purposepurposes| since.....]

[Delete whichever sub-clause is not applicable.]

House Rent Allowance Claimed

Cases in which accommodation is not

sub-let/occupied by non-family members.

Rs.

Monthly rent paid excluding sub-items (a) and (b) of them (1)

above

X

10 percent of pay

Y

House Rent Allowance claimed

X-Y (subject to prescribed ceiling)

Case in which accommodation is sub-let/occupied

by non-family members

Rs.

Monthly rent paid excluding sub-item (a) and (b) of item (1)

above

X

Rent to be taken

{|

3X5

|-

| 10 per cent of pay

| Y

|-

| House Rent Allowance claimed

|
3X5| Y (subject to prescribed ceiling).

|}

Annexure III-B

(Reference Rule 9)

Certificate to be furnished by a Government servant drawing pay above [Rs. 1069]

[Substituted by Memo No. 4344 (F2) dated 30.4.1983.]

per month for the grant of House Rent Allowance in terms of Rule 8 read with Rule 6

(1)

I certify that I am residing in a house owned by my wife/son/daughter/father/mother/.....(address of premises) from the.....to the.....and that the monthly gross rental value thereof as assessed for municipal purpose or otherwise (without deduction of the rebate of.....per cent on account of repairs) is Rs.....This includes/does not include-

(a)

[Municipal and other taxes payable by the owner Rs.....]

[Delete whichever sub-clause is not applicable.]

(b)

[Service taxes levied separately and described as Rs..... for the period.....]

[Delete if not applicable.]

(2)

I certify that accommodation in respect of which the allowance is claimed is not occupied normally by any person other than (a) members of my family as defined in rule 2(c) or (b) my spouse/son(s) daughter(s)/parents(s). Who is/are not drawing any house rent allowance from Central Government, State Government, Autonomous Public Undertaking/Semi-Government Organisations such as Municipality, Port Trust/Autonomous Bodies having been brought into existence by an Act of Parliament such as, Nationalised Banks, Life Insurance Corporation of India, etc.]

(3)

I certify that I [have applied for Government accommodation in accordance with the prescribed procedure but have not been provided with]

[The words shown in brackets may be omitted if the Government servant is not eligible for Government accommodation if his case is covered by not under rule 5(5) or where it is not obligatory for him to apply for Government accommodation for eligibility for House Rent Allowance.]

(have refused the allotment of Government accommodation during the period in respect of which the allowance is claimed.

(4)

I also certify that my wife/husband has not been allotted family accommodation at the same station by the Central Government, a State Government, an autonomous public undertaking or, a semi-Government organisation such as Municipality, Port Trust etc,

(5)

I also certify that [the accommodation for which House Rent Allowance has been a part of the accommodation for which rent allowance claimed by me is not

being used for other than bona fide residential is being claimed by me is used for other than bona fide residential purpose purposes] since.....]

[Delete Whichever sub-clause is not applicable.]

House Rent Allowance Claimed

Cases in which accommodation is not occupied by non-family members.

Rs.

Monthly rental value including sub-item (a) but excluding sub-item (b) of them (1)

above

X

10 percent of pay

Y

House Rent Allowance claimed

X-Y (subject to prescribed ceiling)

Case in which accommodation is occupied

by non-family members

Rs.

Monthly rental value including sub-item (a) but excluding sub-item (b) of them (1)

above

X

Rent to be taken

{|

3X5

|-

| 10 per cent of pay

| Y

|-

| House Rent Allowance claimed

|

3X5| Y (subject to prescribed ceiling).

|}

Annexure III-C

(Reference Rule 9)

Certificate to be furnished by a Government servant drawing pay above [1069]

[Substituted by Memo No. 4344 (F2) dated 30.4.1983.]

who is living in a house owned by him or by Hindu Undivided Family in which he is a co-parcener for the grant of House Rent Allowance in terms of Rule 8

(1)

I certify that I am residing in a house owned by me/Hindu Undivided Family in which I am co-parcener (address of the premises) from the to the..... and that the monthly rental value thereof as assessed for municipal purpose or otherwise (without deduction of the rebate of 10 per cent on account of repairs) is Rs.....This includes/does not include-

(a)

[Municipal and other taxes payable by the owners Rs.....]

[Delete whichever sub-clause is not applicable.]

(b)

Service taxes levied separately and described as Rs for the period.....]

(2)

[I certify that accommodation in respect of which the allowance is claimed is not occupied normally by any person other than (a) members of my family as defined in rule 2(a) or (b) my spouse/son(s)/daughter(s)/parent(s) who is/are not drawing any house rent allowance from Central Government, State Government, Autonomous Public Undertaking/Semi-Government Organisation such as Municipality, Port Trust/Autonomous Bodies having been brought into existence by an Act of Parliament such as Nationalised Banks, Life Insurance Corporation of India, etc.]

[Delete if not applicable.]

(3)

I certify that [(have applied for Government accommodation in accordance with the prescribed procedure but have not been provided with)]

[The words shown in brackets may be omitted if the Government servant is not eligible for Government accommodation or If his case is covered by Note under Rule 5(b) or where it is not obligatory for him to apply for Government accommodation for eligibility for House Rent Allowance.]

(have refused the allotment of) Government accommodation during the period in respect of which the allowance is claimed.

(4)

I also certify that my wife/husband has not been allotted accommodation at the same station by the Central Government, a State Government, an autonomous public undertaking or Semi-Government organisation such as Municipality, Port Trust, etc.

(5)

I also certify that [the accommodation for which House Rent Allowance has been a part of the accommodation for which House Rent Allowance claimed by me is not

being used for other than bona fide residential is being claimed by me is used for other than bona fide residential] purpose/purposes] since.....]

[Delete Whichever sub-clause is not applicable.]

Annexure IV

[Reference Rule 4(b) (ii), note]

Constituent of Urban Agglomeration (as shown in Table IV of Census of India, 1971, Series I-India Paper I of 1972-Final Population read with the Appendix thereto issued by the Registrar-General and Census Commissioner, India)

An Urban agglomeration is made up of main town together with the adjoining areas of Urban growth and is treated as one urban spread. The population covered by such spread is categorised as Urban. Each such agglomeration may be made up more than one statutory town adjoining one another such growth such as Railway Colony, University Campus, etc. Such out-growths (O.G.) which did not qualify to be treated as individual towns in their own right and have pronounced urban characteristics are shown constituents of the agglomeration.

Urban Agglomerations (U.A.) are found in two situations, viz., (i) where the agglomeration is composed of the core town and out-growths and (ii) where the agglomeration is composed of two more towns and their out-growths, if any.

Bihar

1. Bokaro Steel City

Bokaro Steel City

Chas

2. Dhanbad

Bera

Bhagatdih

Bhowrah

Bhuli

Dhanbad

Sindri

Tisra

Jamadoba

Jharua

Jorapokhar

Kenduadih

Kerkend

Loyabad

Patherdih

Sijua

3. Danapur

Danapur Cantt.

Dinapur M. Nizamat

4. Jamshedpur

Adityapur N.

Begbera

Jamshedpur

(i)

Jamshedpur N.

(ii)

Railway Colony

Jugsalai

Kalimati

5. Patna

(i)

Patliputra Housing Construction Co-operative Society Ltd.

(ii)

Patna M. Corp. Phulwari

6. Purnea

Kasba

Purnea M.

7. Ranchi

Doranda N.

Jagannathnagar

Ranchi M.

Note. - M stands for Municipality and 'N' stands for Notified Area.

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